

OFFICE OF THE COMMISSIONER OF POLICE : DELHI.

Standing Order No. 165/2006

Subject : Prevention of begging in Delhi.

The Bombay Prevention of Begging Act of 1959 (Bombay I Act No. X of 1959) was extended to this Union Territory of Delhi by the Delhi Administration vide their Notification No. F.1 (185)/60/ DSW (i) dated 10.2.61 (copy at Annexure-I), Section 2 of the said Act defines the term begging as under: -

- a) Soliciting or receiving alms in a public place, whether or not under any pretence such as singing, dancing, fortune telling, performing or offering any article for sale.
- b) Entering on any private premises for the purpose of soliciting or receiving alms;
- c) exposing or exhibiting, with the object of obtaining or extorting alms any sore, wound injury, deformity or disease whether of a human being or animal;
- d) having no visible means of subsistence and, wandering about or remaining in any public place in such condition / or manner, as makes it likely that the person so exists by soliciting or receiving alms;
- e) allowing one self to be used as an exhibit for the purpose of soliciting or receiving alms; but does not include soliciting or receiving money or food or gifts for a purpose authorised by any law, or authorised in the manner prescribed by the Deputy Commissioner or such other officer as may be specified in this behalf by the L.G. Delhi.

2. Section 4 of this Act lays down that: -

- i) Any police officer, or other person authorised in this behalf in accordance with rules made by the L.G., Delhi, may arrest without a warrant any person, who is found begging.

Provided that, no person entering on any private premises for the purpose of soliciting or receiving alms shall be so arrested or shall be liable to any proceedings under this Act, except upon a complaint by the occupier of the premises.

- ii) Such police officer or other person shall take or send the person so arrested to a court;

iii) The provisions of section 57 of the Code of Criminal Procedure 1973 (Act No.2 of 1974) shall apply to every arrest under this section and the Officer Incharge of the Police Station shall cause the arrested person to be kept in the prescribed manner until he can be brought before the court.

3. Section 6 of Act provides for detention of a person found to be a beggar in a certified institution for a period of not less than one year and not more than three years. For a subsequent offence the period of detention would range from two years to three years and for a third offence the period of detention may be ten years.

~~4. Under Section 11, whoever employs or causes, any persons to solicit or receive alms, or whoever having the custody, charge, or care of a child connives at or encourages the employment or the causing of a child to solicit, or receive alms or whoever uses another person as an exhibit for the purpose of begging shall on conviction be punished with imprisonment for a term, which may extend to three years, which shall not be less than one year.~~

5. Under Section 30, any police officer or other person authorised in this behalf arresting a beggar may also seize any animal the sore, wound, injury, deformity or disease of which was exposed or exhibited by such person with the object of obtaining or extorting alms. Such an animal may be removed to any infirmary appointed under the Prevention of Cruelty to Animals Act.

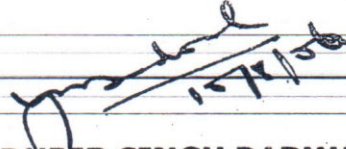
6. Under section 31 of the Act, the offences under section 6 and 11 have been declared to be cognizable non-bailable.

7. The Act thus provides fairly stringent measures to check the menace. Success of measures to root out begging from Delhi will depend upon effective enforcement of the legal provisions for which police have been made responsible, ACsP, I/C Sub-Divisions & SHOs should, therefore, make adequate and necessary arrangements to prevent begging in their respective areas. They should explain the provisions of the Act to their staff and the police parties going out on patrol should be directed to apprehend beggars. Special attention should be paid to persons found begging near the places of tourist resorts which are generally visited by foreigners and at Railway Stations, I.S.B.T., Airports, markets, business centers, secretariat, religions congregations, Yamuna Ghats, etc. Gazetted officer and Upper Subordinates going out for a patrolling should see, that beat constables pay adequate attention to this work. Anti-begging campaign should be launched by the local police from time to time in consultation with the Director Social Welfare/Supdt. Poor House and the beggars found roaming about apprehended. When police parties are sent to apprehend the beggars/touts the team should be headed at least by an S.I. or A.S.I.

8. Director Social Welfare or the Superintendent of the Poor House may also request any police station staff for assistance in rounding up beggars. Such assistance should be readily provided to the anti-begging squad(s).

9. Hon'ble High Court issued directions in Crl. Writ Petition No.169/2000 (Court on its own motion Vs. State) and 3959/96 (Yogesh K. Yogiraj Vs. L.G. & Others) that Beggars/Venders/Hawkers be removed from traffic signals/intersections. All ACsP/Incharge Sub Divisions/ Traffic and SHOs/T.Is. shall ensure compliance of the directions of the Hon'ble Court.

Old Standing Order No. 165 issued vide this office No. 2868-3109/XXI/82/Spl.C&T/AC-I, dated 11.01.1989 is hereby cancelled.


(YUDHBIR SINGH DADWAL)

SPL.CP/ADMN.

FOR COMMISSIONER OF POLICE: DELHI.

No. 39652-751 /AC-V/C&T/PHQ, dated Delhi, the 11/08/2006.

Copy for information and necessary action to :

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi.
3. All Addl. Commissioners of Police, Delhi.
4. S.O./P.A. to C.P. Delhi.
5. All D.Cs.P./Distts. & Units including FRRO & P/PTS, Jharoda Kalan, Delhi.
6. FA, LA and EA to Commissioner of Police, Delhi.
7. All Asstt. Commissioners of Police in PHQ, Delhi.
8. All Insprs. in PHQ, Delhi.
9. All SHOs/RIs, Delhi (to be circulated by concerned Distts./units).
10. All Head Asstts. in PHQ, Delhi.
11. HAR/PHQ with 10 spare copies.
12. I/c Library PHQ, with 5 spare copies.